

In re S. Bradley Mell

No. 26-16834-EJO (Bankr. D.N.J.)

Hearing: July 16, 2026

Appendix to Opposition to Motion to Dismiss

Volume IVa — Criminal & Federal Record (Part 1)

Tab	Document	Date
D-1	Plea Agreement — United States v. S. Bradley Mell	2019-01-01
D-2	Letter from Gulfstream to Bruce H. Nagel, Esq. — B.B. v. Mell	2023-01-01

Tab D-1

Plea Agreement — United States v. S. Bradley Mell

Department of Justice

United States Attorney
District of New Jersey

100 State Street, Suite 700
Newark, NJ 07102

973/645-2700

RECEIVED

June 1, 2019

JUN 17 2019

[REDACTED]

DLEY MELL

our client, STEVEN
District of New Jersey ("this
agreement will expire on June
revised by this Office on or before

this Office will accept a
Rule 11(c)(1)(C) of the
agreement, which charges
2252A(a)(2), and 2) travel
of 18 U.S.C. § 2423(b).

and is sentenced on these
supervised release, and
agreement, this Office will not
DLEY MELL for a) from
distributing and producing
state travel from July 2017
for sexual conduct with Minor

aphy with Minor Victim 2.
t entered for any reason or the
a does not remain in full force
l any other charges that are not
ate this agreement is signed by
him, notwithstanding the
EY MELL signs the

federal Rule of Criminal
rty may elect to be relieved of
status prior to the entry of the
Department of information
the Court in determining
the Court defers a decision to
report, neither party will
Court ultimately determines to

pornography

STEVEN BRADLEY MELL agrees
years' imprisonment, a statutory
tory maximum fine equal to the
pecuniary gain that any persons
any pecuniary loss sustained by any
dge may be subject to the payment of

determines that STEVEN BRADLEY
0, section 1591, Chapters 71, 109A,
(Uniform Code of Military Justice), or
use, sexual abuse, or abusive sexual
ession, receipt, mailing, sale,
hy, or sex trafficking of children, the
RADLEY MELL agrees to plead
5) years and a statutory maximum

Illicit Sexual Conduct

STEVEN BRADLEY MELL agrees to
years' imprisonment and a statutory
fine the gross amount of any
or (3) twice the gross amount of any
fines imposed by the sentencing judge

finds that STEVEN BRADLEY
18 U.S.C. § 2423(b) to which
is a maximum prison sentence of sixty

on STEVEN BRADLEY MELL, the
MELL to pay an assessment of \$100 per
to be paid by the date of sentencing;
on pursuant to 18 U.S.C. § 2259; (3)
pursuant to 18 U.S.C. § 3583 must
supervised release of at least five (5)
years, which will begin at the expiration
BRADLEY MELL be placed on a
the conditions of supervised release
MELL may be sentenced to not more
term previously imposed, regardless
above and without credit for time
sentenced to an additional term of

STEVEN BRADLEY MELL be
commit an offense while on release in
1591 of the United States Code, for
to be imposed, STEVEN BRADLEY
imprisonment in addition to any prison term
term of imprisonment set forth above
supervision, and may be sentenced

Trafficking Act of 2015, upon
to be indigent, an additional
used.

f Criminal Procedure, this Office and
months' imprisonment and 5 years'
e. Accordingly, if the Court accepts
sentenced to a term of 84 months'

Office reserves its right to take any
used on STEVEN BRADLEY MELL
ng to the sentencing proceedings, and
ation Office all law and information
, this Office may inform the
(1) this agreement; and (2) the full
es and relevant conduct with respect

to stipulate at sentencing to the
by is made a part of this plea
ions to the Court pursuant to Rule
to the extent that the parties do not
es the right to argue the existence of
nce. Moreover, this agreement to
on and evidence that this Office
Office obtains or receives additional
es to be credible and to be materially
this Office shall not be bound by any
ot binding shall not release either this
ion of this agreement, including any
on, both parties reserve the right to
sentencing court was within its
t restrict this Office's right to respond
that has been provided to the Court.

N BRADLEY MELL agree that,
ce with this Rule 11(c)(1)(C) plea
EN BRADLEY MELL further agrees
e in entering into this Rule
ction for any reason by any means,
challenge or seek to modify any

her than ineffective assistance of
d to, a direct appeal under 18 U.S.C. §
under 28 U.S.C. § 2255, a motion to
for early termination of supervised
however captioned, that seeks to
ction or sentence.

acceptance of responsibility and
(1) all computer and computer
18, discovered visual depictions
nd 2260 of Title 18 of the United
2251, 2251A, 2252, 2252A, 2252B,
roduced, transported, shipped, or
ates Code; (3) all property, real and
proceeds obtained from the offenses
ersonal, used or intended to be used to
ged in the Information and all property

e all interest in the Forfeitable
ling, whether criminal or civil, state
t to the entry of orders of forfeiture for
les 32.2 and 43(a) of the Federal
ure in the charging instrument,
ation of the forfeiture in the judgment.
e of Forfeitable Property is part of the
ailure by the court to advise him of
riminal Procedure at the guilty plea

d all claims that this forfeiture
does not violate the Eighth

a of the United States, his guilty plea
t to immigration proceedings and
excludable, or inadmissible, or
the immigration consequences of this
immigration authorities. The defendant
ardless of any immigration

removal from the United States. The
regardless of any immigration
waives any and all challenges to his
consequences, and agrees not to seek to
and of collateral attack challenging his
adverse consequences of his guilty plea.

guilty plea to the charged offenses will
stand under federal and state law, and he
understands the consequences. STEVEN BRADLEY
understands that he is bound by his
guilty plea. Accordingly, STEVEN
guilty plea and to his sentence based on
withdraw his guilty plea, or to file a
his guilty plea, conviction, or sentence,

understands, that under the Sex
he must register and keep the
where STEVEN BRADLEY MELL
. STEVEN BRADLEY MELL
providing his name, his social security
address, the names and addresses of any
the license plate number and a
giving other information. STEVEN
to keep the registration current
whether he is an employee, or is a student
name, residence, employment, or
status, and understands, that failure to
for failure to register under federal
prison sentence of 10 years and a
\$10,000; (2) twice the gross amount of any
or (3) twice the gross amount of any

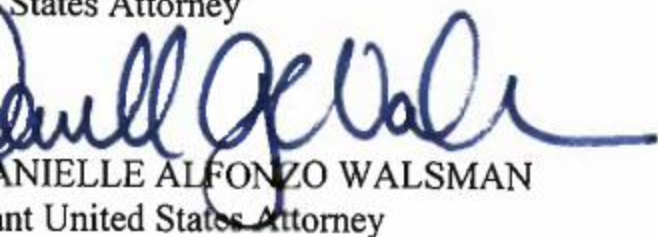
civil or administrative matters that
HEN BRADLEY MELL. This
thereof (including the Internal
ecuting any civil or administrative

PHEN BRADLEY MELL from
an appeal, collateral attack, writ, or
ed constitutionally ineffective

een STEPHEN BRADLEY MELL
between them. No additional promises,
unless set forth in writing and signed

truly yours,

G CARPENITO
States Attorney



ANIELLE ALFONZO WALSMAN
ant United States Attorney

A. Bianchi, Esq. I have read it. My
cluding those addressing the charges,
nsequences, and registration
f the Federal Rules of Criminal
r fully. I hereby accept its terms and
ement between the parties. I
ditions have been made or will be
I want to plead guilty pursuant to this

5-31-19

reement and all of its provisions,
ions, waiver, forfeiture, immigration
impact that Rule 11(c)(1)(C) of the
nt. My client understands this plea

5-31-19

ADLEY MELL

Y MELL agree to stipulate to the

rough December 2017, the defendant
or Victim 1.

defendant engaged in a pattern of
or.

computer or an interactive computer
tion of the material, or for accessing

rough December 2017, and on more
rstate commerce for the purpose of
uding illegal sexual acts and the

tipulate to a particular fact or legal
and the effect of any such fact or

rsuant to Rule 11(c)(1)(C) of the
a sentence of 84 months'
es contained in the Information is
l argue for a sentence below or above
Furthermore, should the Court reject
terms of this plea and the parties will

that he has and, except as noted
any appeal, any collateral attack, or
eal under 18 U.S.C. § 3742 or a
nce imposed by the sentencing Court
ears' supervised release. This
nges the sentence imposed by the
risonment and 5 years' supervised
ipulations set forth in Schedule A,
ck, writ, or motion claiming that the

Tab D-2

Letter from Gulfstream to Bruce H. Nagel, Esq. — B.B. v.
Mell

HARRY D. McENROE
Direct dial: (973) 425-8676
hmcenroe@mdmc-law.com

November 14, 2025

Via Email

Bruce H. Nagel, Esq.
Nagel Rice, LLP
103 Eisenhower Parkway, Suite 103
Roseland, NJ 07068

Re: B.B. v. Mell, et al.
Docket No.: ESX-L-7200-19
MDMC File No. 02767-0001

Dear Bruce:

As you know, our firm represents the Gulfstream defendants (“Gulfstream”) in this action. Pursuant to Rule 1:4-8(b), this correspondence will serve as these defendants’ written notice that the allegations within the Second Amended Complaint, Count Ten, as against Gulfstream, violate both N.J.S.A. 2A:15-59.1 and Rule 1:4-8.

Giving the plaintiff the benefit of all reasonable inferences, after the conclusion of years of extensive and prolonged discovery, including endless motion practice, a plausible liability theory as against Gulfstream simply does not exist. The thrust of the allegations against Gulfstream as set forth in Count Ten of the Second Amended Complaint, captioned “Negligence Against Corporations,” are: (1) Gulfstream knew or should have known that one or more of the tortious acts of defendant Mell took place in facilities owned and/or operated by them; (2) Gulfstream owed a duty of care to plaintiff not to allow these premises to be utilized for criminal activity and tortious acts; (3) Gulfstream, by allowing its offices to be utilized for such unlawful, tortious purposes, provided substantial assistance to the commission of the tortious acts; and (4) Gulfstream breached its duty of care to B.B.

It is well settled that the existence of a duty of care is a legal determination to be made by a court. Foreseeability of the risk of harm is recognized as the foundational element in this determination of whether a duty exists. A trilogy of New Jersey Supreme Court cases, culminating in the decision of Coleman v. Martinez, 247 N.J. 319 (2021), focus upon the threshold foreseeability of harm analysis where, as here, the risk of harm is posed by third persons. Any cogent application of the principals articulated within these decisions to the undisputed facts herein must result in a dismissal of all claims as against Gulfstream.

McElroy Deutsch

Of particular relevance here is the case of J.S. v. R.T. H., 155 N.J. 330 (1998), where the Supreme Court focused upon the “foundational element” of foreseeability within the duty determination, in the context of the sexual abuse of minors by a third-party. While the court ultimately found a duty on the part of the spouse to report, any review of the analysis undertaken supports Gulfstream’s position. Under the unique spousal circumstances, the court held that a wife with “knowledge or special reason to know” that her spouse was sexually abusing children had a duty to prevent or report that abuse. 155 N.J. at 352.

The J.S. court initially addressed the “objective analysis” applicable to foreseeability as a component of a duty to exercise care, as based on the defendant’s “knowledge of the risk of injury.” Id. at 338. The court further noted that where the risk of harm is difficult to ascertain, foreseeability may require that a defendant have a “special reason to know” that a particular plaintiff would likely suffer a “particular type” of injury. Id. at 338 (citation omitted). Finally, the J.S. court ultimately emphasized:

Further, when the risk of harm that is posed by third persons, a plaintiff may be required to prove that defendant was in a position to “know or have reason to know, from past experience, that there [was] a likelihood of conduct on the part of a [a] third-person” that was “likely to endanger the safety” of another.

Id. (quoting Clohesy v. Food Circus Supermarkets, Inc., 149 N.J. 496, 507 (1997).)

In short, there is utterly no basis, under the undisputed facts, to support any claim that the Gulfstream defendants knew, or had reason to know, of defendant S. Bradley Mell’s after-hours sexual abuse of a minor within the offices that the company subleased from defendant W. H. Mell Associates. See also G.A. – H. v. K.G.G., 238 N.J. 401 (2019) (court concluding that no reasonable trier of fact could find that the co-worker defendant knew or had special reason to know that assailant was engaged in an illegal sexual relationship with a minor).

The Supreme Court undertook what it characterized as the “foreseeability inquiry” in the context of third-party harm in Coleman v. Martinez, 247 N.J. 319 (2021). Unlike the “novel context” associated with the J.S. and G.A. – H. cases upon which it relied, the Coleman case did not involve the sexual abuse of a minor. Rather, it arose in the “uniquely personal” relationship between mental-health practitioners and their patients. Id. at 343. The court held that the victim of a violent assault by a defendant social worker’s patient could maintain an action due to the surrounding facts, which made it particularly foreseeable that the patient would lash out against plaintiff. Id. at 349-50. Comparing the respective facts in those other matters, the court stated:

These facts are like those found relevant to foreseeability in J.S. (finding relevant a spouse’s prior offenses, therapeutic history and regimen, and physical evidence discoverable in the marital home), and a far cry from the absence of either knowledge or a reason to know in G.A. – H.

McElroy Deutsch

Id. at 49-50 (citations omitted). There is a stark lack of either knowledge, or reason to know, herein.

Multiple witnesses have provided testimony concerning the lack of foreseeability herein. The Second Amended Complaint also details how: “Mell hid his relationship with B.B.” See ¶ 77; see also ¶¶ 79-82; ¶ 84; and ¶¶ 89-91. B.B. also specifically described the clandestine nature of the off-hour visits to Mell’s offices during her deposition.

The dubious nature of any foreseeability argument is demonstrated by a comparison of this fundamental concept as applied to plaintiff’s parents. Despite their knowledge of the improper sexual relationship engaged in by Mell with their underaged older daughter, the parents claim that they were blind-sighted by their eventual discovery of a similar relationship between Mell and plaintiff. In essence, the parents posit that plaintiff’s sexual abuse was unforeseeable to them, despite the facts revealed by their deposition testimony and associated documentary evidence.

In marked contrast, the Gulfstream defendants had utterly no knowledge of the existence of plaintiff, let alone Mell’s previous abuse of the older sister. As revealed by the depositions of both Mell and the Gulfstream principals, Mell’s personal affairs were kept totally private from his business partners.

Based on the foregoing, Gulfstream demands that all allegations of the Second Amended Complaint be dismissed as they may pertain to Gulfstream with prejudice. You are accordingly hereby given written notice that a motion for sanctions will be made if the referenced claims are not dismissed with prejudice within 28 days of service of this written demand as against your firm and client.

Please be guided accordingly.

Very truly yours,

McElroy, Deutsch, Mulvaney & Carpenter, LLP

s/Harry D. McEnroe

Harry D. McEnroe

HDM:gb
cc: All Counsel